

EASTMAN & SMITH LTD.

ATTORNEYS AT LAW

Established 1844 | Innovating Daily

February 27, 2024

Timothy J. Williams
80 Woodlake Trail
Mt. Vernon, OH 43050

Invoice # 3939699
Client # 3472
Matter # 222027
Billing Attorney: SECH

For Professional Services Rendered Through January 31, 2024

RE: Knox Cattle Company Dam

PROFESSIONAL SERVICES RENDERED

Date	Tkpr	Description of Services	Hours	Amount
1/03/24	CMGR	Review Mullins Bros. motion for summary judgment, including the issue regarding a scrivener's error	.70	119.00
1/03/24	SECH	Research regarding "scrivener's error" doctrine; telephone conference with Mark Long and Mike Ulrey regarding early bank account records for HOA.	1.60	1,144.00
1/04/24	CMGR	Analyze scrivener's error argument	4.20	714.00
1/04/24	SECH	Research regarding homeowner deeds and issues for affidavits.	1.80	1,287.00
1/05/24	CMGR	Analyze scrivener's error argument and draft response	2.60	442.00
1/05/24	SECH	Continued research regarding homeowner deeds.	2.20	1,573.00
1/08/24	SECH	Preparation of affidavits for homeowners; review and analyze CES Credit Union bank statements for 2008 - 2023 for The Landings Property Owners Association.	3.80	2,717.00
1/09/24	SECH	Preparation of affidavits for residents of Phase VII and Phase VIII.	3.50	2,502.50
1/10/24	SECH	Research regarding Mr. Bertko and his involvement in homeowners association; prepare correspondence to Mr. Bertko; review and analyze Mullins' reply in support of motion to amend cross-claim; prepare correspondence to Mark Long regarding same; preparation of affidavit for Derk Demaree.	2.80	2,002.00
1/11/24	SECH	Preparation of memorandum contra Mullins' motion for summary judgment on cross-claim.	2.70	1,930.50

Client # 3472
 Matter # 222027

February 27, 2024
 Invoice # 3939699

Date	Tkpr	Description of Services	Hours	Amount
1/12/24	SECH	Preparation of memorandum contra Mullins' motion for summary judgment; research and analysis regarding same.	3.60	2,574.00
1/15/24	SECH	Preparation of memorandum contra Mullins' motion for summary judgment; research and analysis regarding same.	3.60	2,574.00
1/16/24	SECH	Preparation of additional affidavits; emails and correspondence with clients regarding questions concerning provisions in affidavits; further preparation of memorandum contra Mullins' motion for summary judgment.	4.00	2,860.00
1/17/24	SECH	Preparation of additional affidavits; emails and correspondence with clients regarding questions concerning provisions in affidavits; further preparation of memorandum contra Mullins' motion for summary judgment.	1.60	1,144.00
1/18/24	SECH	Prepare correspondence to Mount Vernon City Attorney Robert Broeren regarding follow up on requested statement from city on status of funds for dam remediation.	.10	71.50
1/19/24	SECH	Preparation of motion to dismiss Crystal Tuel from lawsuit; preparation of notice of filing Mullins' responses to requests for admission; preparation of memorandum in opposition to Mullins' motion for summary judgment; preparation of notice of filing affidavits; review and analyze State of Ohio memorandum contra motion for summary judgment; review and analyze Mullins' memorandum contra motion for summary judgment; preparation of correspondence to Mark Long regarding court filings.	7.50	5,362.50
1/22/24	SECH	Preparation of second notice of filing of affidavits; research regarding case law cited by State of Ohio and Mullins in their memoranda contra motions for summary judgment; prepare draft reply memoranda.	4.40	3,146.00
1/23/24	AMVO	Preparation of motion to withdraw as counsel for Matt and Karen Cherup.	.30	45.00
1/23/24	SECH	Further preparation of reply memoranda in support of summary judgment motions against State of Ohio and Mullins Bros.	1.10	786.50
1/24/24	SECH	Further preparation of reply memoranda in support of summary judgment motions against State of Ohio and Mullins Bros.	2.60	1,859.00
1/24/24	SLRE	Attention to affidavits of clients. Revise Second Notice of Filing Affidavits as well as spreadsheet in same regard.	1.30	188.50
1/25/24	SECH	Further preparation of reply memoranda in support of summary judgment motions against State of Ohio and Mullins Bros.	3.40	2,431.00

Client # 3472
 Matter # 222027

February 27, 2024
 Invoice # 3939699

Date	Tkpr	Description of Services	Hours	Amount
1/25/24	SLRE	Continue review of affidavits of clients. Revise Second Notice of Filing and spreadsheet in regard to status of same.	.80	116.00
1/25/24	SLRE	Attention to additional affidavits of clients. Revise Second Notice of Filing Affidavits and spreadsheet.	.20	29.00
1/26/24	SECH	Further preparation of reply memoranda in support of summary judgment motions against State of Ohio and Mullins Bros.; review and analyze Mullins' reply memorandum supporting dispositive motion deadline; prepare correspondence to Mark Long regarding same; prepare status report to Mark Long; prepare correspondence to Mount Vernon City Attorney Robert Broeren requesting update on status of funds for dam remediation.	6.20	4,433.00
1/26/24	SLRE	Revise Second Filing of Affidavits. Organize the notice and all affidavits and file the same with the court. Review and revise memoranda. File memoranda with the court. Correspondence to all parties with copies of all pleadings.	3.20	464.00

FEES FOR PROFESSIONAL SERVICES**\$ 42,515.00****SUMMARY OF PROFESSIONAL SERVICES**

Tkpr	Name	Hours	Total
AMVO	Angela M. Vohsing	.30	45.00
CMGR	Claire M. Griffin	7.50	1,275.00
SECH	Stephen E. Chappellear	56.50	40,397.50
SLRE	Stacie L. Resor	5.50	797.50
	TOTALS	69.80	\$ 42,515.00

CHARGES

Date	Description	Amount
1/26/24	Filing Fees, PRI Court Reporting LLC, Filing of Mullins Vol. I deposition transcript	235.60
1/26/24	Filing Fees, PRI Court Reporting LLC, Filing of Mullins Vol. II deposition transcript	155.45

CHARGES**\$ 391.05**

Client # 3472
Matter # 222027

February 27, 2024
Invoice # 3939699

INVOICE TOTAL **\$ 42,906.05**

Less Trust Applied \$ -33,364.44

INVOICE BALANCE DUE **\$ 9,541.61**

A late charge of 1.5% per month (18% Annual Rate) will be assessed after 60 days from the date of the invoice.